REPORTABLE (113)

AL JAZEERA MEDIA NETWORK
v
MEHLULELI DUBE

SUPREME COURT OF ZIMBABWE
GUVAVA JA, MAKONI JA & MUSAKWA JA
HARARE: 13 JUNE & 12 DECEMBER 2025

T.S. Manjengwa, for the appellant

T.L. Mapuranga, for the respondent

GUVAVA JA:

[1] This is an appeal against the whole judgment of the High Court ('court *a quo*') dated 11 October 2024 which granted the respondent's application for attachment of property to found or confirm the jurisdiction of the court in an intended suit for defamation against the appellant. The court *a quo* also directed the Sheriff of Zimbabwe to take into his possession the appellant's laptops, computers, printers, cameras and photographic equipment situate at its bureau office at Room 102 Rainbow Towers Hotel, Harare.

[2] The Court holds that the court *a quo* erred in finding, as it did, that the appellant had a bureau office in Zimbabwe and further that it possessed property within the jurisdiction of the court which was capable of attachment to found or confirm jurisdiction. I set out hereunder the reasons for coming to this decision.

BACKGROUND FACTS

[3] The facts that give rise to this dispute are generally common cause. The appellant is a private foundation established for the public benefit under the laws of Qatar. It has

legal capacity in that it can sue and be sued in its own name. Its principal place of business is at Corner Khalifa Street and Ahmed Bin Ali Street, Wadi Al Sail, Doha, Qatar. The appellant operates a news and public affairs television station under the name Al Jazeera from Doha, Qatar. The television station airs, through a satellite television service, all over the world. This is done through a company called Multichoice under its platform commonly known as "DSTV". It has a dedicated channel on Channel 406.

[4] The respondent is a male adult, resident and domiciled in Zimbabwe. He was formerly employed by Fidelity Printers and Refiners Zimbabwe as the Head of Gold Operations from the year 1989 to 2022. On 20 September 2023, the respondent approached the court *a quo* with a chamber application for an order of attachment *ad confirmandam jurisdictionem* in terms of s 15 of the High Court Act [*Chapter 7:06*]. The respondent intends to issue out summons against the appellant (who is a *peregrinus*) for defamation.

[5] Following a well-orchestrated publicity blitz, the appellant aired, between the periods 23 March 2023 and 14 April 2023, a television documentary video series titled "The Gold Mafia". The series was aired on DSTV Channel 406 and through the internet on a website called www.youtube.com.

[6] The documentary had three episodes and in the second Episode titled "Smoke & Mirrors" at timestamp 33:10 – 33:42, the appellant implicated the respondent, through an informant, as one of the major players in gold deals which were alleged to have occurred in Zimbabwe. It was alleged that the respondent was involved in smuggling gold out of the country. It was further alleged that, as Head of Gold Operations with Fidelity Printers and Refiners, he was corruptly executing his duties by signing off

licences for the sale and purchase of gold by one Kamlesh Pattni who is alleged to be one of the major players in the gold smuggling syndicate. The respondent, for his pains, was alleged to be receiving a bribe of US$3 000 per month. The specific words from the documentary relating to the respondent were the following:

> "Informant: One guy is responsible for the gold sales. His name is Dube. Dube is getting good benefits from Pattni, $3 000 per month.
> Narrator: Dube refers to Mehluleli Dube, he was Fidelity Printers and Refiners' Head of Gold Operations.
> Informant: And he's also the signing authority for getting this licence for sale and purchase."

[7] The views for the broadcast of the particular episode climaxed to a record 2.8 million on both platforms. The respondent was obviously aggrieved by the allegations of corruption made against him and sought to claim damages for what he believed to be defamatory statements made in the documentary. He engaged the appellant and demanded proof that the allegations against him were true in an email dated 15 May 2023. The appellant did not respond to the email. The respondent sent a second email on 24 May 2023, with a letter of demand attached, for damages in the sum of US$2 000 000 (two million dollars) for defamation and injuria.

[8] As expected, the threat of a claim for damages did the trick and elicited a response from the appellant. It informed the respondent that it had not received the email dated 15 May 2023 and promised to give due consideration to the contents of the email and provide a detailed response as soon as possible. After that response the appellant again went quiet prompting the respondent to advise the appellant that he was waiting for a substantive response and in the event that it was not availed he would institute legal proceedings to attach its assets to confirm the jurisdiction of the court without further notice. The last email was not responded to by the appellant resulting in the respondent

filing the chamber application referred to earlier seeking attachment of the appellant's property to found jurisdiction.

[9] In the application, the respondent averred that the net effect of airing the series had caused irreparable harm to his image and reputation amongst his peers, family and the nation at large. This was due to the appellant's extensive television coverage at home and abroad. The respondent further stated that the continued access to the episode on the appellant's website continues to damage his reputation as people could still view it long after the series had stopped showing on DSTV. He stated that the loss of his reputation and standing in society warranted a claim in damages in the sum of USD 2 000 000 (two million United States dollars).

[10] He asserted that the appellant has a bureau office at room 102 Rainbow Towers, Harare (room 102) where it holds tools of trade including laptops, printers and state of the art cameras which can be attached. He further stated that the appellant employs one Haragum Rocabella Mutasa who resides at 683 Beeston Avenue, The Grange, Harare. He further averred that the appellant's local Deputy Editor and Camera Man Tafadzwa Gabriel Chisvo resides at 6 Belmont Court Flats, 83 Prince Edward Street, Milton Park, Harare. He asserted that the two employees hold in their possession state-of-the-art laptops, cameras and photographic equipment which belong to the appellant and may be attached from their homes. He estimated the property to be valued at no less than US$100 000 (one hundred thousand dollars). The respondent attached to the application a draft summons which he intends to issue. He claims the sum of US$2 000 000, as damages for defamation.

[11] The appellant opposed the application. In its opposing affidavit, deposed to by its Director of Investigative Journalism Phillip Rees, it denied having a bureau office at

room 102. It however confirmed that it leases room 102 from the Rainbow Tourisim Group Ltd, which room is used as an editorial room by its employees. He denied that any equipment belonging to the appellant is kept in that room. He further stated that the appellant is neither incorporated nor does it have a principal place of business in Zimbabwe and as such it was not subject to the court's jurisdiction over the defamation claim.

[12] The appellant vehemently denied that the publication of the documentary was defamatory of the respondent as the references to him were true and for the public benefit. It was alleged that Fidelity Printers and Refiners and its employees perform a public function and their actions are therefore in the public interest. He stated that the appellant had a duty to publish the information that they had uncovered as corruption in public institutions is of public interest. The appellant maintained that the publication was true, and statements made were made after reasonable steps had been made to verify their correctness.

[13] The appellant accepted that its employees possess laptops and cameras which they use in carrying out their duties as these are their mobile tools of trade. The appellant however denied that its employees keep any of its equipment in room 102. It averred that some equipment is kept by their employees as they use it wherever their work takes them. The appellant stated that at the time when the chamber application was served at room 102, its employees were not in the room and neither was any of their equipment.

[14] Finally, the appellant averred that the respondent simply claimed that it owns laptops, cameras and photographic equipment, without describing with any particularity the said property. It was its stance that failure to do so rendered the application devoid of merit as the respondent failed to satisfy the basic requirement of such an application.

[15] In an answering affidavit, the respondent maintained that he had satisfied all the requirements for such an application to succeed. He stated further that he was not required by law to provide a full description of each item owned by the appellant in Zimbabwe. He stated that, as the appellant had admitted that it possesses property in Zimbabwe, that was sufficient for the court to grant the application.

SUBMISSIONS BEFORE THE COURT *A QUO*

[16] The respondent submitted before the court *a quo* that he had proved his claim. He submitted that the appellant's documentary was false and defamatory of him. He argued that the appellant held property in Zimbabwe which could be attached to found jurisdiction of the court both in room 102 and at the residence of its employees. He argued that the appellant had a bureau office in Zimbabwe which held its equipment thus distinguishing it from the cases decided previously where the *peregrinus* defendants had no permanent presence in the country.

[17] The appellant submitted that the respondent must satisfy three requirements in order for the application to be granted. It conceded that the respondent had satisfied the first two requirements by making out a *prima facie* case for a defamation claim against it and that, it being a *peregrinus*, the respondent had to found jurisdiction through attachment of property. The appellant however argued that the respondent failed to satisfy the third requirement; by failing to provide proof on a balance of probabilities that it held property within Zimbabwe. It further submitted that it did not hold a bureau office in Zimbabwe nor did it have property which is firmly established in Zimbabwe.

DECISION OF THE COURT *A QUO*

[18] The court *a quo* held that in an application to found or confirm jurisdiction, the respondent must prove three basic requirements. It found that the property to be

attached must be ascertainable and should be within the jurisdiction of the Court. It further found that the appellant operates a bureau office at room 102. The Court also found that the respondent had established a *prima facie* cause of action of defamation and that the appellant was a *peregrinus*.

[19] The Court further held that the finding that the appellant has a bureau office which houses equipment belonging to it which the respondent could attach was enough to confirm the jurisdiction of the court. Further, that the order of the court would be confined to the attachment of property in the bureau office and not at the residences of the appellant's employees as no connection had been established between the equipment in their residences to equipment owned by the appellant. In the result, the court granted the application for an attachment to found the jurisdiction of the court and ordered the Sheriff of Zimbabwe to attach laptops, computers, printers, cameras and photographic equipment in room 102.

[20] Aggrieved by the decision of the court *a quo*, the appellant appealed to this Court on the following grounds:

1. The court *a quo* erred in concluding that the appellant had confirmed that it operated a bureau office in Zimbabwe in the face of appellant's unchallenged evidence that it only sublet room 102 at Rainbow Towers Hotel as an editorial room.
2. The court *a quo* erred in finding that the appellant had property firmly established in Zimbabwe in view of the unchallenged evidence that appellant only introduced its equipment into the country intermittently when its employees, who travel locally and internationally use the editorial room at room 102 Rainbow Towers.
3. The court *a quo* erred in finding that the uncertainty as to when appellant's employees would be in Zimbabwe with the cameras, laptops and photographic

equipment made the present case similar and not distinguishable from the cases in *Tembo* v *PCJ Motorways* HH 224/17 and *Clan Transport (Pvt) Ltd* v *Government of the Republic of Mozambique* 1993 (3) SA 795.

4. The court *a quo* erred in failing to find that, in the absence of a more detailed and specific description by respondent of property to be attached, the *onus* on respondent to prove ownership by appellant of any property within the court's jurisdiction could not have been discharged.

In its relief, the appellant seeks that the appeal be allowed and the respondent's application dismissed with costs.

SUBMISSIONS BEFORE THIS COURT

[21] Relying on the case of *Tembo* v *PCJ Motorways* HH 224/17, Mr *Manjengwa*, counsel for the appellant, submitted that in an application for attachment to found or confirm jurisdiction the respondent must prove the following:

(i) that there is a *prima facie* case against the appellant,
(ii) that the appellant is a *peregrinus,* and
(iii) that the property to be attached is to be found within the jurisdiction of the court.

Counsel conceded that the first two requirements have been satisfied by the respondent. It was his submission however, that the respondent failed to prove, on a balance of probabilities, that the appellant's property was firmly established in Zimbabwe. Counsel contended that the property that the court *a quo* ordered to be attached consisted of laptops and cameras which are mission ready tools of trade which move with the appellant's employees from place to place, and in any event, are not kept at room 102.

[22] Counsel further submitted that the appellant accepts that it has two employees who are ordinarily resident in Zimbabwe and are in possession of some of the appellant's equipment. It denied that the fact that its employees reside in Zimbabwe gives it permanent presence in the country. He submitted that the property is not ordinarily kept in Zimbabwe as the employees are deployed on regional and international assignments. It was his argument therefore that the property is not always in the country.

[23] Counsel further argued that the court *a quo* erred in granting the application for the attachment of the appellant's property as it did not keep any equipment in room 102 . He maintained that the property that the court *a quo* ordered for attachment was not "firmly established" in Zimbabwe as it was constantly in and out of the country. It was submitted further that room 102 was only used as an editorial room and the court therefore erred in characterising it as a bureau office when there was no evidence to that effect. Counsel concluded by arguing that the overriding principle which should have guided the court *a quo* was the effectiveness of the order it granted, as an order granting attachment of property which is not in the jurisdiction of the court would be ineffective.

[24] On the contrary, Mr *Mapuranga*, counsel for the respondent argued that, in its opposing affidavit *a quo*, the appellant did not deny that it had a bureau office in Zimbabwe. In addition, counsel argued that the appellant did not deny that the value of its property which is in the possession of its employees is USD100 000. Counsel contended that, the requirement that in an application to found jurisdiction there must be property within the jurisdiction, had been satisfied. It was however lost to counsel that the court a quo had made a specific finding that property in the home of appellant's employees could not be attached. Counsel however, conceded that on the day that the respondent served the appellant with the application, its employees were not in room 102. It was

his contention that the defining factor which distinguished this case, from the cited cases, was the presence of a bureau office in Zimbabwe. In his opinion a bureau office gives the appellant a permanent presence in the court's jurisdiction.

ISSUES FOR DETERMINATION

[25] The appellant's appeal is centred on four grounds. In my view, these grounds raise two issues for determination: (i) whether the appellant has a bureau office in Zimbabwe, (ii) whether or not the appellant has property within Zimbabwe, which may be attached to found the jurisdiction of the High Court.

THE LAW

[26] An application to found or confirm the jurisdiction of the Court, commonly known as an application *ad fundandam jurisdictionem*, is a legal procedure that is used to found or confirm a court's jurisdiction to hear a case when the defendant is a *peregrinus*, that is, someone or an entity which is not domiciled or ordinarily resident within the court's jurisdiction. The authors Herbstein and Van Winsen, in '*The Civil Practice of the Superior Courts of South Africa*', 5th ed describes such an application at p 95 as follows:

> "An attachment to found or confirm jurisdiction is an attachment, in South Africa, of the property of a *peregrinus* (a person who is domiciled and resident in a foreign country) in order to make that person amenable to the jurisdiction of a South African court…attachment of property to found or confirm jurisdiction of a court is not unconstitutional because it serves the purpose of making any judgment that the court may give in favour of the plaintiff effective ...."

While the above excerpt indicates that the learned authors were discussing the law as it pertains in South Africa, it must be noted that these principles apply with equal force in Zimbabwe.

[27] In the South African case of *Tsung & Anor* v *Industrial Development Corporation of South Africa Ltd & Anor* 2006 (4) SA 177 (SCA) the Court set out the history of how such cases have evolved in the South African courts. It states:

> "The practice of arrest or attachment to found or confirm jurisdiction was firmly established in Holland by the 17th Century in the interest of *incolae* and from considerations of commercial convenience. It enabled them to proceed in local courts against *peregrini* who were for the time being physically within the jurisdiction area of the court or possessed property there. In addition to founding or confirming jurisdiction and to commence proceedings, an attachment had since those days an additional function and that was the provision of security enabling the plaintiff, eventually, to execute in his own jurisdiction. Pending the finalisation of the proceedings, the defendant could not alienate or encumber the attached property. This function of attachment has since repeatedly been highlighted by our courts, including by this Court some months ago."

[28] In this jurisdiction, an application to confirm or found jurisdiction was originally founded at common law. In *Stanmarker Mining (Pvt) Ltd* v *Metallon Corporation Ltd* 2004 (1) ZLR 45 at p 49A - G SANDURA JA discussed the foundation of such applications in Zimbabwe and the effect of the legislative intervention that took place. He states:

> "The common law position on the attachment of property in order to confirm jurisdiction was set out by BECK J (as he then was) in *African Distillers Ltd* v *Zietkiewicz & Ors* 1980 ZLR 135 (GD) at 136 F-H as follows:
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> > 'The well settled common law for which there is no dearth of judicial authority, is that for claims that sound in money brought by an *incola* or a *peregrinus* against a *peregrinus*, there must be an arrest of the person of the defendant *peregrinus* or an attachment of his property within the territorial jurisdiction of the Court in order to found jurisdiction, or to confirm jurisdiction in those cases where some other jurisdictional ground exists in relation to the claim……. Such arrests or attachments are necessary in order to satisfy, albeit only partially and imperfectly in some cases, the doctrine of effectiveness, for the court will not concern itself with suits in which the resulting judgment will be no more than a *brutum fulmen* ...'
>
> The common law position was altered by s 15 of the High Court of Zimbabwe Act [*Chapter 7:06*] which reads as follows:

> 'In any case in which the High Court may exercise jurisdiction founded on or confirmed by the arrest of any person or the attachment of any property, the High Court may permit or direct the issue of process, within such period as the court may specify, for service either in or outside Zimbabwe without ordering such arrest or attachment, if the High Court is satisfied that the person or property concerned is within Zimbabwe and is capable of being arrested or attached, and the jurisdiction of the High Court in the matter shall be founded or confirmed, as the case may be, by the issue of such process.'
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> Thus, whereas under common law "there must be an arrest of the person of the defendant *peregrinus* or an attachment of his property within the territorial jurisdiction of the court in order to found jurisdiction, or to confirm jurisdiction in those cases where some other jurisdictional ground exists in relation to the claim" the court now has a discretion as to whether the arrest of the defendant *peregrinus* or the attachment of his property should be ordered. However, the plaintiff still has to show that the defendant *peregrinus* is within Zimbabwe or that property belonging to the defendant *peregrinus* is within Zimbabwe and is capable of being attached.'"

[29] As can be seen from the above cases the laws in South Africa and Zimbabwe are very similar. The requirements for establishing the right to attach property in order to found or confirm jurisdiction are the same. The only difference relates to the discretion granted in this jurisdiction through s 15 of the High Court Act [*Chapter 7:06*], which, while entrenching the common law position, altered it to the extent that the court now has an unfettered discretion to decide whether or not to arrest a *peregrinus* or to attach his property in order to found or confirm the court's jurisdiction. What can be clearly deciphered from the above authorities is that an applicant has an obligation to satisfy the requirements for an attachment to found or confirm jurisdiction. In other words, the courts discretion to order the actual arrest of the *peregrinus* or to attach his property is triggered by the establishment of the requisite jurisdictional grounds. These requirements were succinctly set out by OLIVIER J in *Numil Marketing C & Anor* v *Sitra Wood Products PTE Ltd & Anor* 1994 (3) SA 460 (C) where at 463 F-I the learned judge stated:

> "It is common cause that an applicant for attachment must show that:

(1) It has a *prima facie* cause of action against the defendant;
(2) The defendant is a *peregrinus* of the Republic; and
(3) The defendant is within the area of jurisdiction of the Court or that the property in which the defendant has a beneficial interest is within that area."

[30] *In casu*, in motivating the point that a *peregrinus* must have property in the jurisdiction of the court which can be attached to found jurisdiction, the appellant relied on the case of *Tembo* v *PCJ Motorways* HH 224/17 where DUBE J (as she then was) stated the following at p 5 of the cyclostyled judgment:

> "The difficulty with attaching vehicles that frequent a jurisdiction and are temporarily in and out of the country is that one is never certain of their whereabouts. For a court to grant an order for attachment to found jurisdiction it must be satisfied that there is property which is capable of attachment at any time. The property must be firmly located in this jurisdiction."

(See *Clan Transport (Pvt) Ltd* v *Government of the Republic of Mozambique* 1993 (3) SA 795 (ZH).)

The High Court has interpreted the requirement that property to be attached must be within the jurisdiction to mean it must not be transient but must be 'firmly located' within the jurisdiction of the court.

ANALYSIS

[31] *In casu*, it is common cause that the respondent managed to prove the first two requirements for an order of attachment to found or confirm jurisdiction in his application against the appellant. Having been conceded both *a quo* and in this court, it will thus, not unnecessarily detain the court. The point of diversion therefore, relates solely to the third requirement which requires the appellant to have property which may be attached within Zimbabwe. It is this requirement that has triggered the present appeal. This is a question of fact which must be assessed from the evidence which was led *a quo*.

[32] In an effort to establish that the appellant has property within the jurisdiction of the court, the respondent averred as follows in his founding affidavit:

> "The respondent has a Zimbabwe bureau office at Rainbow Towers, Harare at which it holds multiple items of property including laptops, computers, printers and state of the art cameras… I estimate these properties to be of a value of no less than US$100 000."

This was strongly resisted by the appellant in its opposing affidavit when it averred that:

> "The respondent confirms it sublets (sic) room 102 at Rainbow Tourism Group Limited. The room is used as an editorial room by the respondent's employees. The respondent accepts that its employees have in their possession laptops and cameras, which they use in the carrying out of their trade that they keep in possession thereof. The employees do not keep the laptops or cameras at Room 102 Rainbow Towers, although they may have at some point prior to the respondent's application."

[33] The court *a quo* after assessing the evidence made the following finding:

> "The respondent did not deny that it keeps laptops and cameras in the bureau office, although at the time of service of the present application, its employees were not in room 102 Rainbow Towers. The nature of equipment that the applicant wants attached is the same type of equipment that would be used in a bureau office… It has not been denied that the bureau office houses the equipment that the applicant wants attached to confirm the jurisdiction of the court. It was also not disputed that the equipment in the bureau office belongs to the respondent."

[34] Based on the admission by the appellant that it was leasing room 102, the court a *quo* found that the appellant was operating a bureau office and that there was property in the office belonging to it which was capable of attachment to found jurisdiction. I pause to just comment that the appellant could not have been subletting room 102 as the word sublet means to lease out to another person or entity. One can only assume that the interpretation was lost at the time that the appellant's representative made his statement under oath. Be that as it may, the evidence on record is that the appellant was leasing the property from Rainbow Tourism Group Ltd. It was on this evidence that the court a

quo found that the appellant was operating a bureau office from room 102. This finding is attacked in the first ground of appeal. It seems to me that this finding by the court *a quo* is erroneous in a number of respects. I will proceed to outline hereunder the fundamental errors which were made by the court *a quo* and which led it to arrive at a wrong conclusion which was completely unsupported by the evidence.

[35] The first point which raises a red flag is the court *a quo's* finding that room 102 is a bureau office. In its judgment the court *a quo* does not explain the basis for this finding. The appellant, in its opposing affidavit, had categorically denied that it operated a bureau office. It is not clear how the admitted editorial office morphed to become a bureau office. An editorial office and a bureau office are not the same. The court *a quo* should have explained how it came to the conclusion that room 102 was a bureau office and not an editorial one. Faced with this startling finding by the court *a quo* I have taken the liberty to look at the definitions of the words 'editorial office' and 'bureau office' in order to ascertain if they mean the same or they can be used interchangeably. The Merriam Webster Dictionary.com defines the term "bureau" in the context of news reporting as referring to a '**branch** of a newspaper, newsmagazine, or wire service ….' (Emphasis is my own). On the other hand, an editorial room is defined by the Cambridge Dictionary as a room "to edit written material for clarity, accuracy and style before it goes for print"

[36] It is clear from these definitions that a bureau office and an editorial office are completely different in structure and function. A bureau office (when relating to news) is typically an outlying branch office devoted to news gathering in a specific location whereas an editorial office is where news is edited and produced for publication. The distinguishing feature between the two is therefore that a bureau office establishes a branch of an entity. A branch of the main office, would clearly give the appellant

presence within the court's jurisdiction. In this case it is common cause that the appellant broadcasts international news from Qatar, hence the argument that it operates a bureau office in Zimbabwe in the sense that such an office is a branch of the Qatar office cannot hold. In para 28 above I quoted in full the response made by the appellant regarding the averment that room 102 is a bureau office. It was categorically denied. There is no evidence on the record that the appellant uses the room for collecting or distributing news or information. The appellant's position was that the room was being used purely as an editorial office. Without an explanation in its judgment on how the court came to this finding which was clearly contrary to the evidence, the impression that the court *a quo*'s decision is grossly unreasonable and capricious is unavoidable. (See *Barros* v *Chimponda* 1999 (1) ZLR 58 (S) at 62 G – 63 A)

[37] The second point that flows from this issue is whether there is any evidence on the record that there was equipment in room 102 that belonged to the appellant at the point of service of the application. The only evidence is that room 102 is leased by the appellant for editing purposes. This position was not denied or rebutted by the respondent in its answering affidavit. It is not in dispute that when service of the application was made at room 102, none of the appellant's employees were present.

[38] The fact that the property belonging to the appellant was not identified by the respondent in his founding affidavit introduces yet another fault in the court a quo's findings. As set out in the case of *Stanmarker Mining (Pvt) Ltd* v *Metallon Corporation Ltd* (*supra*) one of the requirements to be satisfied by an *incola* plaintiff in an application for attachment to found or confirm jurisdiction is that the *peregrinus* defendant possesses property within that area of the court's jurisdiction. Although, the law does not prescribe that the plaintiff must specifically identify the property to be

attached, the same plaintiff must be able to show the court that there is property which may be attached. The challenge in this case is that the respondent simply stated that there is property which may be attached in room 102. However, the description of the property, especially in the face of the denial by the appellant that it does not have any equipment in that room makes the question of identification particularly important. This is more so in view of the transient nature of the equipment as it is used by the appellants employees who travel in and out of the country in the course of their employment.

[39] To further compound the respondent's woes is his failure to establish that there was property belonging to the appellant in room 102 when the application was launched. That there must be property belonging to the *peregrinus* in the jurisdiction at the time of service of the application is sacrosanct. The absence or the failure to identify such property for attachment at the point of service of the application is detrimental to an applicant's case. This was clearly stated in *Thermo Radiant Oven Sales (Pty) Ltd* v *Nelspruit Bakeries (Pty) Ltd* 1969 (2) SA 295 (A) at p 298 B, POTGIETER JA remarked as follows:

> "The crucial moment for determining whether there is property within the jurisdiction for purposes of an attachment, is the moment when the application is launched …."

Thus, where the property of the appellant cannot be identified at the initial stage of launching the application, such application cannot succeed.

[40] What can be discerned from the above is that, in order for the requirement that there is property within the jurisdiction to be met, the property of the *peregrinus* must be ascertainable, identifiable and firmly within the jurisdiction of the court at the critical stage when the application is launched. This has clearly not been established by the respondent.

[41] The appellant in its third ground of appeal referred the Court to similar cases relating to an *incola* seeking to attach property of a *peregrinus* to confirm jurisdiction. The appellant submits that the property must be "firmly located or established" within the jurisdiction of the court. I agree. The appellant cited *Tembo* v *PCJ Motorways* HH 224/17 and *Clan Transport (Pvt) Ltd* v *Government of the Republic of Mozambique* 1993 (3) SA 795 (ZH). In *Tembo* v *PCJ Motorways* (*supra*) the respondent therein was a *peregrinus* company registered in Botswana and involved in the transport business. The applicant, who was a passenger on one of the respondent's buses was injured when the respondent's bus was involved in a road traffic accident in Zimbabwe. The applicant sought to claim damages for the injuries she had sustained and made an application to attach the respondent's property to found jurisdiction. DUBE J, (as she then was), in determining the application at p 5 noted that:

> "Attachment of vehicles that travel in and out of a jurisdiction poses problems. Before a court can issue an order for attachment to found jurisdiction, it must be satisfied that the property sought to be attached is within the jurisdiction and capable of attachment. The difficulty with attaching vehicles that frequent a jurisdiction and are temporarily in and out of the country is that one is never certain of their whereabouts. For a court to grant an order for attachment to found jurisdiction it must be satisfied that there is property which is capable of attachment at any one time. The property must be firmly located in this jurisdiction."

At p 3 the court referred to the *Clan Transport (Pvt) Ltd* case (*supra*) and noted the following:

> "The case of *Clan Transport (Pvt) Ltd* v *Government of the Republic of Mozambique* 1993 (3) SA 795 (ZH), involved an applicant who had vehicles temporarily and from time to time within Zimbabwe in the form of vehicles travelling from Mozambique to various parts of Zimbabwe on respondent's affairs. The court declined to order attachment of property on the basis that it was not certain that the respondent had any property in Zimbabwe which was capable of being attached. The court remarked as follows:
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> > 'It is clear from this paragraph that at any given time the respondent's vehicles may or may not be in Zimbabwe. There are, therefore, times when the respondent does not have any property in Zimbabwe, which can be attached. In addition, the information given by the applicant is

meagre. The identity and value of the property which is sought to be attached are not given.'"

[42] The present appeal is on all fours with the Tembo case (*supra*). The appellant's employees travel in and out of the country frequently due to the nature of their employment. They cover current affairs in the region and beyond. The appellant has established a reputation for being on the spot whenever current affairs evolve in different parts of the world. It is not in dispute that its employees travel with their tools of trade. These include laptops, cameras and other high end photographic equipment. According to the appellant, room 102 is used as an editing room and no equipment is kept in that room. In order for the respondent to have succeeded *a quo,* he ought to have established that the appellant had, in room 102, property which is capable of attachment.

There is no evidence on the record that the appellant has property that is firmly established in Zimbabwe. There was no basis for the court *a quo* to distinguish the facts in this case from those in the *Tembo* case. The court *a quo's* finding that the appellant operated a bureau office in Zimbabwe having already been discounted above, meant that there was no basis for distinguishing the case. What is clear from the authorities is that the property of a *peregrine* defendant must not be transient but must be firmly established in the jurisdiction before an order of attachment may be granted.

DISPOSITION

[43] The court *a quo* fell into error when it concluded that the appellant has a bureau office in Zimbabwe when there was no evidence on the record that such an office exists other than an editorial office. Further there was no evidence that the appellant keeps laptops and cameras in room 102, which property could be attached to found or confirm the

jurisdiction of the court. The respondent's failure to identify the property sought to be attached as at the time when the application was served in room 102, further weakened his claim. The appellant's employees' travel in and out of the country covering current affairs as is their mandate. They travel with their tools of trade. Such property cannot be said to be firmly established within the jurisdiction of the court. In the face of these findings the court *a quo* erred in finding for the respondent. The appellant's appeal has merit and must succeed.

[44] The appellant prayed for costs in the event of the success of the appeal. The Court finds no reason to depart from the usual practice regarding a successful party being entitled to costs.

[45] In the result it is ordered as follows:

1. The appeal be and is hereby allowed with costs.
2. The judgment of the Court *a quo* be and is hereby set aside and substituted with the following:

"The application be and is hereby dismissed with costs."

MAKONI JA : I agree

MUSAKWA JA : I agree

Wintertons, appellant's legal practitioners.

Gill Godlonton & Gerrans, respondent's legal practitioners.